

TENTATIVE RULING

Case: **Wight v. FCA US, LLC**
 Case No. CV2025-0415

Hearing Date: **September 3, 2026** **Department Thirteen** **9:00 a.m.**

Motion for sanctions:

Defendants FCA US, LLC and Hoblit Chrysler Dodge Jeep Ram's motion for sanctions is **DENIED**. (Code Civ. Proc., § 871.26, subd. (j)(1).) To the extent that plaintiffs Linda E. Wight and Thomas E. Wight failed to comply with section 871.26, they have shown sufficient good cause to avoid the imposition of sanctions. (*Ibid.*; Rucker decl., ¶¶ 3-7, Exhibit 1.) Specifically, while their initial disclosures were untimely, this delay was due to their counsel's inadvertent calendaring error and upon discovering the error, plaintiffs immediately provided their initial disclosures. (Rucker decl., ¶¶ 4-7.) Further, in their initial disclosures, plaintiffs provided responses as to each required category, and defendants failed to alert plaintiffs as to any alleged noncompliance until this motion was filed, nearly a year later. (See *id.*, ¶ 7, Exhibit 2.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to compel initial disclosures:

Plaintiffs Linda E. Wight and Thomas E. Wight's motion to compel initial disclosures and request for sanctions is **DENIED**. (Code Civ. Proc., § 871.26.) Plaintiffs have failed to establish that defendant FCA US, LLC's initial disclosures were insufficient. (Code Civ. Proc., § 871.26, subds. (b), (h); see generally Rucker decl.; Lopez decl., ¶¶ 3-4.) As the Court is not finding that defendant failed to comply with section 871.26, the Court does not impose sanctions. (Code Civ. Proc., § 871.26, subd. (j)(1).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.